

## 24STCV16669 24STCV16669

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-07-08

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Case Number: 24STCV16669 Hearing Date: July 8, 2026 Dept: 735

Miller, et al. v. Blackwelder Management

Group, LLC et al.

Plaintiffs' Motion to Compel Deposition of Defendant

Vince Shulman;

Plaintiffs' Motion to Compel Deposition of

Defendant Val P. Shulman

### BACKGROUND

This motion arises from a warranty of  
habitability action.

Plaintiffs Kiara S. Miller, Mamie C. Field,  
and Edwin A. Stell, through his guardian ad litem Mamie C. Fields (Plaintiff)  
filed a complaint against defendants Blackwelder Management Group, LLC  
(Blackwelder); Leonora Shulman, individually and as trustee of Shulman Living  
Trust (Trust); and Val P. Shulman, individually and as trustee of the Trust.

### LEGAL STANDARD

CCP § 2025.450(a) provides, “[i]f, after  
service of a deposition notice, a party to the action or an officer, director,  
managing agent, or employee of a party, or a person designated by an  
organization that is a party under Section 2025.230, without having served a  
valid objection under Section 2025.410, fails to appear for examination, or to  
proceed with it, or to produce for inspection any document, electronically

stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."

## DISCUSSION

### Motion to Compel Deposition of Vince Shulman

Plaintiffs move to compel the deposition of Defendant Vince Shulman, property manager of the subject property where Plaintiffs reside and that Defendants own. On November 7, 2025, Plaintiffs served Defendant Vince Shulman with a Notice of Deposition to take place on December 17, 2025, via Zoom. (Arriaga Decl., ¶ 2, Ex. 1.) Before the deposition date, defense counsel, Harry Safarian, notified Plaintiffs that he was unavailable. On December 30, 2025, Plaintiffs served Defendant Vince Shulman with a Notice of Deposition to take place on January 22, 2026 via Zoom. Mr. Safarian never contacted Plaintiffs and did not serve objections to the Notice of Deposition. (Arriaga Decl., ¶ 5) On January 22, 2026, Defendant and his counsel, Mr. Safarian, failed to appear at the noticed deposition. (Arriaga Decl., ¶ 6, Ex. 4.) Defendant does not oppose this motion.

As

Plaintiffs are entitled to take the deposition of a party, the Court grants the motion to compel Vince Shulman's deposition. The Court will allow sanctions in the amount of \$1,560.00 (1hr to draft motion + 1 hr to attend hearing x \$750.00 per hr + \$60.00 filing fee).

### Motion to Compel Deposition of Defendant Val Shulman

Plaintiffs

move to compel the deposition of Defendant Val Shulman. On November 7, 2025, Plaintiffs served Defendant Val P. Shulman with a Notice of Deposition to take place on December 18, 2025, via Zoom. (Arriaga Decl., ¶ 2, Ex. 1.) Before the deposition date, defense counsel, Harry Safarian, notified Plaintiffs that he was unavailable. On December 30, 2025, Plaintiffs served Defendant Val P. Shulman with a Notice of Deposition to take place on January 28, 2026 via Zoom. (Arriaga Decl., ¶ 4, Ex. 3.) Mr. Safarian never contacted Plaintiffs and did

not serve objections to the Notice of Deposition. (Arriaga Decl., ¶ 5, Ex. 2.)

On January 28, 2026, Defendant and his counsel, Mr. Safarian, failed to appear at the noticed deposition. (Arriaga Decl., ¶ 6, Ex. 4.)

As

Plaintiffs are entitled to take the deposition of a party, the Court grants the motion to compel Val Shulman's deposition. The Court will allow sanctions in the amount of \$1,560.00 (1hr to draft motion + 1 hr to attend hearing x \$750.00 per hr + \$60.00 filing fee).

#### CONCLUSION

The Court grants Plaintiffs' motion to compel Vince Shulman's deposition. The Court grants the request for sanctions in the amount of \$1,560.00.

The Court grants Plaintiffs' motion to compel Val Shulman's deposition. The Court grants the request for sanctions in the amount of \$1,560.00.

Plaintiffs  
to give notice.